

		2023.040.) Further, a self-represented party may not recover monetary sanctions on discovery motions “other than amounts actually expended” and the motion does not request amounts expended. (<i>Damak v. Superior Court</i> (2026) 121 Cal.App.5th 792, 804.) Griggs is directed to give notice.
3	<i>Felix de Flores – Trust</i> (2025-01514581)	Motions to Quash (3) Specially Appearing Respondent Elia Guadalupe Solis’s Motion to Quash Service of Verified Petition for Lack of Personal Jurisdiction (ROA 63) is GRANTED. Specially Appearing Respondent Alma Georgina de Garcia’s Motion to Quash Service of Petition for Lack of Personal Jurisdiction (ROA 67) is GRANTED. Specially Appearing Respondent Norma Fabiola Reyes’s Motion to Quash Service of Petition for Lack of Personal Jurisdiction (ROA 76) is GRANTED. Pursuant to CCP §§ 418.10 and 581(h), specially appearing respondents Elia Guadalupe Solis, Alma Georgina de Garcia, and Norma Fabiola Reyes (Respondents) move to quash service of the petition on the ground they were not personally served with the petition.

	“Probate proceedings are proceedings in rem. A superior court has jurisdiction to determine the interests of all parties connected with the property of a decedent based on the property's location within the state.” (<i>Capra v. Capra</i> (2021) 58 Cal.App.5th 1072, 1082-1083; see also <i>Estate of Kampen</i> (2011) 201 Cal.App.4th 971, 1003 [“The jurisdiction of the probate court is in rem and the res is the decedent’s estate.”].) Because it is an in rem proceeding, a probate matter finally resolves all conflicting rights and binds the “whole world”. As the California Supreme Court explained in <i>In re Radovich’s Estate</i> (1957) 48 Cal.2d 116, 121: “the jurisdiction of the probate court is a jurisdiction in rem; [] an heirship proceeding is not an ordinary civil action, but a specialized proceeding in rem. The res is the right of heirship and distribution and as to that issue the decree is binding on the whole world.” (<i>See also Bodine v. Superior Court</i> (1962) 209 Cal.App.2d 354, 359-360 [“Such a proceeding is not an ordinary civil action, but a specialized proceeding in rem.” (Id at p. 383.) “So it has been said that such heirship decree [is] conclusive against all persons as the basis for the decree of distribution which [is] to follow; it settles the rights of all persons claiming as heirs of the decedent, whether or not they are named in the complaint or personally served with summons and whether or not they were individually named in [the] notice. .
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	. . The decree is not one in personam in favor of one of the parties against another.” Citations and internal quotation marks omitted.].) Under the foregoing authorities, mail service of the petition on Respondents was sufficient to support this court’s exercise of jurisdiction over claims asserted in the petition (ROA 2) seeking to contest a trust, remove a trustee, impose a surcharge in connection with the trustee’s breach of fiduciary duties, compel an accounting, determine the rights of heirs and beneficiaries, and the invalidity of a no-contest clause. Mail service is not, however, sufficient to support this court’s exercise of jurisdiction over the remaining claims asserted in the petition, i.e. financial elder abuse, Probate Code section 850, and fraud. Nor is mail service sufficient to support an award of damages, double damages, and punitive damages against the individual respondents. (Prob. Code, § 581; Code of Civ. Proc., § 413.10 et seq.) Because those claims are alleged in this petition, mail service of the petition is not sufficient. The motions are GRANTED. Respondent Elia Guadalupe Solis is ordered to give notice.
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